

Manoj Kumar Tripathi vs Smt. Kalpana Tripathi And Others on 12 October, 2010

Author: Ashok Srivastava

Bench: Ashok Srivastava

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Case :- CRIMINAL REVISION No. - 1309 of 2008

Petitioner :- Manoj Kumar Tripathi

Respondent :- Smt. Kalpana Tripathi And Others

Petitioner Counsel :- Utpal Chatterji

Respondent Counsel :- Govt.Advocate,Vijai Prakash

Hon'ble Ashok Srivastava,J.

This revision has been filed by the revisionist against the judgment dated 13.2.2008 passed by learned Principal Judge, Family Court, Meerut in Case No.72 of 2007, Smt. Kalpana Vs. Manoj under section 125 Cr.P.C..

Fortunately in the instant case most of the facts are admitted. It is admitted fact that the revisionist had married opposite party no.1 and out of this wedlock two sons were born who are opposite party nos. 2 & 3. It is also admitted that the revisionist and opposite party no.1 are living separately from each other since long and opposite party nos. 2 & 3 are living with their mother. As per records opposite party no.1 was married to the revisionist on 6.7.1994 in Kota Rajasthan. The revisionist was posted as Assistant Process Chemist in Darula Organic Company, Meerut. Therefore, the opposite party no.1 had come alongwith him to Meerut and they started living together. Opposite party no.1 was shocked when she came to know that the revisionist was a patient of Schizophrenia and this fact was concealed by him and his family members before the marriage. Due to this mental disorder the revisionist regularly misbehaved with opposite party no.1 and often assaulted her. Opposite party no.1 tolerated all his misbehaviour and during the passage of time opposite party nos. 2 & 3 were

born. In the meantime opposite party no.1 continued her studies and managed to get a teaching job in a college. There was noThis revision has been filed by the revisionist against the judgment dated 13.2.2008 passed by learned Principal Judge, Family Court, Meerut in Case No.72 of 2007, Smt. Kalpana Vs. Manoj under section 125 Cr.P.C..

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Opposite party No.2 filed a divorce petition before the Principal Judge, Family Court, Meerut, which was registered there as Case No.56 of 2007, Smt. Kalpana Tripathi Vs. Manoj Kumar Tripathi under Section 13 of the Hindu Marriage Act. She also filed in the same Court another case under Section 125 Cr.P.C. which was registered there as Case No.72 of 2007.

From the perusal of the judgment of the lower Court it appears that the learned Principal Judge clubbed the two cases together, recorded evidence and disposed of both the cases by a common judgment on 13.2.2008. It should be mentioned here that the petition under Section 125 Cr.P.C. was moved with the prayer that the revisionist should give certain amount of maintenance to opposite party nos. 2 & 3 as they were living with their mother and their father i.e. the revisionist was not spending even a single penny on their maintenance. Opposite party no.1 did not claim any maintenance for herself from the revisionist.

The learned Principal Judge, Family Court decreed the divorce petition filed by the opposite party no.1 and allowed the petition under Section 125 Cr.P.C., filed by opposite party no.1 on behalf of opposite party nos.2 & 3. The learned lower court has held that a sum of Rs.2500/-per month is required for the maintenance of each of the sons of the couple out of which a sum of Rs.1500/- was to be borne by their mother i.e. opposite party no.1 and Rs.1000/- was to be paid by their father i.e. the revisionist.

Feeling aggrieved by the order to pay maintenance to the children the present revision has been filed.

This Court is not concerned with that part of the judgment which relates to the findings relating to the divorce between the parties. This Court is only examining here the correctness of that portion of the judgment which relates to case No.72 of 2007 under Section 125 Cr.P.C.

I have heard learned counsel for the parties and perused the records.

It has been submitted from the side of the revisionist that the learned lower court had committed a great blunder by deciding the petition under Hindu Marriage Act and the petition under section 125 Cr.P.C., that the learned lower court was well aware that it had no power to consolidate the above mentioned cases and therefore no formal order has been passed by it in this regard. It has further been submitted that the two cases could not be decided together as they are different in nature, one being of civil and the other of criminal nature. It has also been submitted that no separate evidence has been recorded by the learned lower court to dispose of the petition under section 125 Cr.P.C. and the evidence led in the case relating to divorce has been read and considered while deciding the petition for maintenance. Learned counsel has vehemently argued that since there was no evidence on record regarding the petition under section 125 Cr.P.C. the case relating to maintenance should have been dismissed.

Learned counsel for the opposite parties have refuted the arguments advanced from the side of the revisionist and have stated that the judgment impugned herein is legal and it does not require any interference by this Court.

From the side of the revisionist my attention has been drawn towards the case laws reported in 1995 (25) ALR 502, Arvind Kumar Verma Vs. Smt.Suman. In this case this Court has held that the evidence of witnesses of fact in a petition under section 125 Cr.P.C. has to be recorded either by the Judge himself or caused to be recorded by him and a memorandum of the substance be signed by the witnesses and the Judge. It has been further held in this case that if the evidence is of a formal character it can be taken on affidavit but on the application of any of the parties the Family Court may summon and examine any such person as to the facts contained in his affidavit. In this case this Court has dealt with Sections 15 & 16 of the Family Court Act, 1984 and Section 125 Cr.P.C. Other rulings which have been cited from the side of the revisionist are 1982 Cr.L.J. 1460, Bombay High Court, Ramesh Laxman Contractor Vs. Mrs.Jayshreeben Ramesh Contractor & another, II (1993) DMC 197(DB), Karnataka High Court, Gayithri Vs. Ramesh and I (1998) DMC 148 (FB), Kerala High Court, Satyabhama Vs. Rama Chandran.

On the other hand from the side of the opposite parties my attention has been drawn towards the matters reported in 2005 (2) AWC (2093), Allahabad High Court, Amar Nath Gupta Vs. State of U.P. & another, 1998(1) AWC 275, Allahabad High Court (DB), Smt.Guru Bachan Kaur Vs. Preetam Singh and 1998 (3) AWC 1740, Allahabad High Court (D.B.) Rajesh Kumar Upadhyay Vs. Family Judge, Family Court, Varanasi and another.

From perusal of Amar Nath Gupta's case(Supra) it is clear that the fact of this case is more or less similar to the case in hand. From perusal of paras 2 & 3 it is evident that a criminal petition under section 125 Cr.P.C. and a divorce petition under section 13 of the Hindu Marriage Act were pending before the learned Judge, Family Court, Gorakhpur. The learned Judge had treated both the petitions as consolidated to each other and disposed them of with a common judgment. The said judgment was impugned before this Court in Amar Nath Gupta's case. In Amar Nath Gupta's case the procedure adopted by the learned Judge, Family Court, Gorakhpur was assailed from the side of the revisionist mainly on the ground that the two cases should not have been clubbed together and disposed of by a common judgment. In that case it was argued from the side of the revisionist that it was totally illegal and against the provisions of law and procedure. This contention was not accepted by this Court and by a well reasoned judgment, Hon. Umeshwar Pandey, J. has held that the purpose with which the Family Court Act has been enacted is that the procedure should be simple and the parties should not be compelled to enter into the intricacies of procedural law as contained in C.P.C., Cr.P.C. etc. In Smt. Guru Bachan Kaur and Rajesh Kumar Upadhyaya's case a Division Bench of this Court has stated that the Family Court should keep in mind that the legislature has dispensed with strict rigors of the Civil Procedure Code and Evidence Act and emphasized that the effort should be made to simplify the procedure as far as possible. It has further been held in the above mentioned two cases that the Family Courts should not behave in a manner in disposing of the matter which may indicate that they have no regard to the mandate of legislature for the speedy disposal as warranted by the Family Court Act, 1984. It has also been said in the case laws that the proceeding should be expedited so that the prime life of the couple may not be wasted and the family courts are duty bound to adopt its own procedure in proceeding otherwise the proceeding will go on for years together. What these Courts should bear in mind that the hearing should be fair and parties should be duly heard. Quoting the various provisions of Family Court Act, both the Division Benches of this Court had emphasized that keeping in view the fairness of the hearing of the cases simple procedure should be adopted and complicated and circuitous procedure should be avoided.

I have also examined the case law of Arvind Kumar Verma's case (Supra). The facts of that case are altogether different. That case was only under section 125 Cr.P.C. and no case of divorce was clubbed with it. The case laws of Bombay, Karnataka and Kerala High Courts are also on this point. But keeping in view the law laid down by this Court in Amar Nath Gupta's case, with profound respect to these High Courts, I am of the view that the law as laid down by this Court should be followed.

Keeping in view the law laid down by this Court in Amar Nath Gupta's case I do not find that there is any force in the contentions advanced by the learned counsel for the revisionist that the learned lower court had committed a blunder in clubbing the two cases together and deciding them together.

In the instant case as mentioned earlier all the important facts have been admitted by the parties in the case under section 125 Cr.P.C. Opposite party no.1 has not demanded any maintenance for herself from the revisionist. She has demanded maintenance to support her two sons who are admittedly the sons of the revisionist also. Learned lower court has given a very fair finding. He has held that both, the revisionist and opposite party no.1, are responsible to maintain opposite party nos. 2 & 3. He has determined a very reasonable amount of maintenance. This amount is Rs.2500/-

each for opposite party nos. 2 & 3; out of which only Rs. 1000/- is to be paid by the revisionist and Rs.1500/- was to be borne by opposite party no.1.

From the perusal of the judgment it is evident that both the parties have filed their salary certificates before the learned lower court and their genuineness have not been challenged by the adverse party. The learned lower court has held that the monthly income of opposite party no.1 at the relevant date was Rs.7220/- whereas the take home salary of the revisionist is Rs.6384/- only.

Keeping in view the fact that the revisionist is drawing less salary than opposite party no.1, the revisionist has been directed to pay only Rs.1000/- to each of his sons whereas Rs.1500/- was to be borne by opposite party no.1 for each of her sons. In the instant case virtually there was no need to lead any oral evidence. It is the admitted case of the parties that opposite party nos. 2 & 3 are the legitimate sons of the revisionist. Income of the parties is also not disputed, therefore nothing else was left to be determined.

On the basis of the above discussions, I am of the view that there is absolutely no force in the revision and it is accordingly dismissed.

Order Date :- 12.10.2010 IA